

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Candace Taylor	Team: Squad #06	CCRB Case #: 201506489	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/27/2015 11:00 PM	Location of Incident: MTA train station at Howard Beach	18 Mo. SOL 1/27/2017	Precinct: 106		
Date/Time CV Reported Mon, 07/27/2015 11:46 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/05/2015 1:42 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Calafiore	03387	941484	DB GLD
2. POM William Neville	13746	949390	DB GLD

Officer(s)	Allegation	Investigator Recommendation
A . POM William Neville	Abuse: PO William Neville stopped § 87(2)(b)	A . Substantiated
B . POM Frank Calafiore	Abuse: PO Frank Calafiore stopped § 87(2)(b)	B . Substantiated
C . POM Frank Calafiore	Abuse: PO Frank Calafiore frisked § 87(2)(b)	C . Substantiated
D . POM Frank Calafiore	Abuse: PO Frank Calafiore searched § 87(2)(b)	D . Substantiated

Case Summary

This case has exceeded the 90-day benchmark as there were several delays in obtaining the 911 Communications CD which was relevant for the analysis of this case.

On July 27, 2015, § 87(2)(b) filed this complaint over the phone with the Internal Affairs Bureau. It was referred to the CRRB, and was received on August 8, 2015 under log number 15-21384. This case hit the 90- day mark on November 8, 2015, and was delayed because the audio files initially received were incorrect and had to be amended.

On July 27, 2015, at approximately 11:00 p.m., § 87(2)(b) went to the MTA Subway station at Howard Beach in Queens, after leaving the AirTrain. He was about to speak with an employee, from either the MTA or the airport, when he was stopped by PO William Neville and PO Frank Calafiore from Queens South Grand Larceny Auto Division (**Allegations A and B**). The officers told § 87(2)(b) that he was the suspect in a robbery which he denied having any knowledge of. PO Neville subsequently placed § 87(2)(b) in handcuffs. The officers then escorted § 87(2)(b) outside of the train station where he was frisked and searched by PO Calafiore (**Allegations C and D**) prior to a show up. § 87(2)(b) was not identified as the suspect in the robbery and was then released without a summons or arrest.

Mediation, Civil and Criminal Histories

Both mediation and investigation were presented to § 87(2)(b) on August 13, 2015, at which time he opted to have his complaint investigated § 87(2)(g). On August 20, 2015, a Notice of Claim request was submitted and a follow up request sent on October 29, 2015. As of October 30, 2015, § 87(2)(b) has not filed a Notice of Claim with the City of New York regarding this incident (01 Board Review). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (02 Board Review).
- PO Calafiore has been a member of the NYPD for nine years with one substantiated allegation of force (See Officer History).
 - In CCRB case 201201071, a chokehold allegation was substantiated. The board recommended charges. The NYPD disposition was not guilty at trial.
- PO Neville has been a member of the NYPD for five years with no substantiated allegations (See Officer History).

Video Footage

Due to the location of the incident, the investigation attempted to obtain video footage from the MTA and the Port Authority Police Department (PAPD). However, footage from the PAPD did not capture the incident and the MTA does not have any recording equipment at the Howard Beach train station (03 Board Review).

Findings and Recommendations

Identification of Subject Officer

Given that PO Neville and PO Calafiore both acknowledged that they stopped § 87(2)(b) the stop has been pleaded against both officers. § 87(2)(g)

§ 87(2)(b) stated that the officer who frisked him was also the same officer that removed the contents of his shorts pockets. PO Calafiore acknowledged that he frisked and searched § 87(2)(b)

§ 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Allegation A -Abuse of Authority: PO William Neville stopped § 87(2)(b)

Allegation B – Abuse of Authority: PO Frank Calafiore stopped § 87(2)(b)

It is undisputed that at approximately 11:00 p.m. on July 27, 2015, § 87(2)(b) was stopped by PO Calafiore and PO Neville inside the MTA Subway station at Howard Beach.

Three 911 calls were made regarding the robbery at CVS. The first came from an employee inside the store who described the suspect as a black male, approximately 6'0" tall, in his 30s, slim-to-medium build, wearing a black shirt with blue jeans. The perpetrator was with a female, whom witnesses believed was his girlfriend. The pair fled the store with carry-on luggage. The caller gave conflicting reports as to the direction and mode of flight in that the perpetrator and his accomplice fled on foot towards 158th Avenue but also noted that other witnesses saw the pair enter a vehicle.

The second caller stated that the perpetrator went into a taxicab and recited the plate number to the 911 operator but then stated that the perpetrator was seen walking on Cross Bay Boulevard before running to 157th Avenue. The perpetrator was described as a black male wearing a gray shirt with blue pants. The third caller could not provide a description of the perpetrator.

The police radio communications showed that there were inconsistencies with the perpetrator's description and direction of flight gathered from the 911 calls which Central dispatch stated clearly to responding units. Initially, the responding units were informed that the suspect ran on foot in an unknown direction after he tried to rob a store at 157-05 Cross Bay Boulevard, between 157th Avenue and 158th Avenue. They were also informed that the suspect had fled via car and received a third report that the suspect fled on Cross Bay Boulevard. One of the responding sector units transmitted over the radio that the suspect had left the luggage inside a vehicle and fled eastbound on 157th Avenue.

In terms of the suspect's description, dispatch radioed that the perpetrator was a black male, 6'0" tall and wore a black shirt with blue jeans. It was noted that the perpetrator carried luggage but there was no mention of a female accomplice. One of the responding units, sector A, stated that

the canvass around CVS was negative while another unit, Queens South Grand Larceny Auto, stated that a male was stopped at the Howard Beach train station in regards to the robbery, which was determined to be § 87(2)(b)

After § 87(2)(b) stop at Howard Beach train station, Central dispatch transmitted another description of the perpetrator in that he was a black male who wore a blue shirt with gray pants but the color of the pants was unconfirmed. During this event, two 911 calls were made regarding an attempted home invasion and trespassing in the vicinity of 157th Avenue and 95th Street. The perpetrator, who was caught on a home surveillance system, was described as a black male, 6'2" tall with a goatee and wore navy blue sweatpants and a blue shirt with green graphics and white sneakers. The perpetrator fled on foot into a wooded area in the vicinity of Cohancy Street and 155th Avenue. One of the responding units noted that the perpetrator of the home invasion might also be the same individual from the robbery at CVS (10 Board Review).

A Google Maps view of the scene of the robbery and the MTA Subway station at Howard Beach estimated a travel time of 15 minutes on foot (11 Board Review).

§ 87(2)(b) a 6'3" tall black male, who was wearing a short sleeved black shirt with a pair of gray sweat shorts and carried a duffel-sized backpack, stated that he went to the MTA Subway station at Howard Beach, located at 104th Street and 159th Avenue, after leaving the AirTrain. § 87(2)(b) was waiting to speak with either an MTA or airport employee when PO Calafiore and PO Neville approached him. PO Calafiore told § 87(2)(b) that he wanted to speak with him because he was under investigation regarding a crime. § 87(2)(b) gestured with his hands as he told the officers that he just got off of a flight. PO Neville then told § 87(2)(b) that he was under arrest because he was a suspect in a robbery. PO Neville proceeded to place § 87(2)(b) in handcuffs and escorted him outside of the building. § 87(2)(b) told the officers that he was not involved. PO Calafiore told § 87(2)(b) that he matched the suspect's description. § 87(2)(b) asked for the description and was told that the perpetrator was a black male, roughly 6'0" tall and wore a gray shirt with black sweatpants. § 87(2)(b) told the officers that the only part of the description he matched was that he and the suspect were black males (04 Board Review).

PO Calafiore and PO Neville both stated that they were conducting surveillance in the vicinity of Cross Bay Boulevard and 156th Avenue when they received a radio run for a robbery in progress. The officers learned that an employee was stabbed at the CVS pharmacy, located at 157-05 Cross Bay Boulevard and the suspect, whose physical description was given, fled on foot towards 158th Avenue. PO Calafiore stated that the suspect was described as black male, approximately 6'0" tall, wore a T-shirt and sweatpants, and carried some kind of backpack. PO Calafiore did not recall the color of § 87(2)(b) shirt but noted that at the time of the incident, it matched the description that central dispatch transmitted. Being familiar with the 106th Precinct, PO Calafiore believed the suspect might have gone to the Howard Beach train station, which was in the direction the suspect fled. PO Calafiore and PO Neville both saw § 87(2)(b) who they indicated matched the physical description, inside the train station. PO Calafiore stated that § 87(2)(b) was wearing dark gray sweatpants and had on a backpack that resembled luggage. The officers did not see anyone that matched the suspect's description prior to seeing § 87(2)(b)

The officers approached § 87(2)(b) who refused to talk to them. § 87(2)(b) turned to walk away, at which time PO Calafiore moved closer. § 87(2)(b) became combative and then jumped back. PO Calafiore thought that § 87(2)(b) was either going to fight the officers or flee. The officers believed § 87(2)(b) was the suspect in the robbery and PO Neville placed § 87(2)(b) in handcuffs. During their interaction with § 87(2)(b) PO Calafiore learned that the color of the suspect's shirt had changed but could not articulate a specific color. However, PO Calafiore said that the suspect could have changed his shirt after fleeing from the pharmacy (05 Board Review).

PO Neville recalled that the suspect was a black male, possibly 30-years-old, 6'0" tall, and wore a T-shirt and sweatpants. He also noted that the suspect was armed with a box cutter and had luggage. PO Neville corroborated PO Calafiore in that they had not encountered anyone that fit the suspect's description prior to seeing § 87(2)(b) § 87(2)(b) refused to speak with the officers by ignoring them. PO Neville believed that § 87(2)(b) wanted to evade the officers and was subsequently placed in handcuffs by PO Neville (06 Board Review).

In order to stop and detain an individual for a show up identification, an officer must establish reasonable suspicion based on the totality of circumstances which include a general description of the perpetrator and the proximity of said perpetrator to the site of the crime People v. Samuels, 113 A.D.3d 117 (4th Dept. 2014) (07 Board Review). An officer may only stop an individual when he reasonably suspects that such a person is committing, has committed, or is about to commit a crime People v. DeBour, 40 N.Y.2d 210 (1976) (07 Board Review).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C- Abuse of Authority: PO Frank Calafiore frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was placed in handcuffs by PO Neville and was subsequently frisked by PO Calafiore.

The first 911 caller stated that the CVS store manager was stabbed in the face by someone who tried to rob the store. The caller saw the perpetrator with a box cutter and noted that other witnesses saw a gun. The second caller stated that someone was hit inside the store and that the perpetrator had a weapon but did not specify its type. Central dispatch radioed that a manager at CVS had been stabbed with a box cutter. However, the unit that responded to the location confirmed that the manager was not stabbed (10 Board Review).

As per § 87(2)(b) testimony, when the officers approached they told him he was the suspect in a robbery. In response, § 87(2)(b) put up his hands and then stretched them out in front of his body as he told the officers that if they planned to arrest him, they should do so. § 87(2)(b) explained that he had just got off of a flight and could provide the officers with proof. § 87(2)(b) gestured with his hands and pointed to his backpack as he spoke to the officers. PO Neville told § 87(2)(b) to place his hands behind his back, at which time he was placed in handcuffs. PO Calafiore frisked his shorts pockets and then went into the pockets and removed his passport, phone charger, paperwork, and wallet which contained money (04 Board Review).

According to PO Calafiore, he asked to speak with § 87(2)(b) who responded that he did not have time. PO Calafiore moved closer to § 87(2)(b) who became combative by putting his hands up to his chest and gestured with them as he spoke. § 87(2)(b) did not put his hands in or near his pockets. PO Calafiore did not lose sight of § 87(2)(b) hands at any time during the incident. PO Calafiore acknowledged that he frisked § 87(2)(b) after he was escorted outside of the train station for a show up. Given that a CVS employee was stabbed, PO Calafiore believed that § 87(2)(b) may have had a weapon. He did not see anything on § 87(2)(b) that looked like a knife and did not ask § 87(2)(b) if he had one. PO Calafiore frisked § 87(2)(b) waistband and front pockets on his sweatpants in search of the knife used in the robbery. The frisk did not reveal a knife and PO Calafiore noted that the suspect could have disposed of the weapon after fleeing the scene. PO Calafiore did feel a hard object that he believed was a cell phone (05 Board Review).

PO Neville stated that when § 87(2)(b) was stopped, § 87(2)(b) seemed agitated, based on the way he spoke to the officers and that he looked angry. PO Neville also noted that § 87(2)(b) kept placing his right hand into his right pants pocket. § 87(2)(b) had money in his right hand and would remove it repeatedly. PO Neville told § 87(2)(b) to remove his hand from his pocket once. He then told § 87(2)(b) to go with the officers to the police station. § 87(2)(b) was verbally incontinent and PO Neville placed him in handcuffs. Though PO Neville did not see anything on § 87(2)(b) person that resembled a weapon, he took into consideration the radio run that said the

suspect had a box cutter. PO Neville believed § 87(2)(b) was the suspect in the robbery because he matched the suspect's description, his demeanor and that § 87(2)(b) kept putting his hand in his pocket. PO Calafiore then frisked § 87(2)(b) pants pockets. The frisk did not reveal a weapon but it did reveal what felt like a passport (06 Board Review).

If an officer reasonable suspects an individual of committing a crime involving potentially dangerous instruments, then said officer has a reasonable basis to frisk the individual People v. Burks 652 N.Y.S. 2d (1997) (08 Board Review). When no more than a common-law right to inquire exists, a frisk must be based upon a reasonable suspicion that the officers are in physical danger and the defendant poses a threat to their safety People v. Robinson 278 A.D.2d (2000) (08 Board Review).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] It
is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation D- Abuse of Authority: PO Frank Calafiore searched § 87(2)(b)

It is undisputed that § 87(2)(b) was searched subsequent to a frisk.

§ 87(2)(b) stated that PO Calafiore went into his shorts pockets and removed his passport, phone, paperwork, phone charger, keys and wallet.

PO Calafiore acknowledged that he retrieved items from § 87(2)(b) pants pocket after conducting a frisk. As noted in **Allegation C**, PO Calafiore felt a hard object during the frisk which he indicated that he believed was a cell phone. PO Calafiore then reached into § 87(2)(b)

pocket after asking if he had ID. PO Calafiore removed § 87(2)(b) passport and his cell phone, the hard object that he felt during the frisk. § 87(2)(b) did not have a weapon on his person (05 Board Review).

An officer is justified in searching an individual only after a frisk reveals an object that the officer would reasonably suspect to be a weapon that could pose a danger to his safety People v. Williams 217 A.D. 2d 1009 (1995) (09 Board Review).

§ 87(2)(g)

§ 87(2)(g) _____

_____ Therefore it is recommended that **Allegation**
D be closed as **substantiated**.

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date